

Jayamadhavan vs Sumi S on 30 July, 2016

Author: K.Surendra Mohan

Bench: K.Surendra Mohan, K.Abraham Mathew

IN THE HIGH COURT OF KERALAAT ERNAKULAM

PRESENT:

THE HONOURABLE MR.JUSTICE K.SURENDRA MOHAN
&
THE HONOURABLE MR. JUSTICE K.ABRAHAM MATHEW

THURSDAY,THE 3RD DAYOF NOVEMBER 2016/12TH KARTHIKA, 1938

Mat.Appeal.No. 1062 of 2016

AGAINST THE JUDGMENT AND DECREE IN OP 520/2014 OF FAMILY COURT, KOTTAYAM
DATED 30-07-2016

APPELLANT/PETITIONER:

JAYAMADHAVAN
AGED 37 YEARS, S/O. VELAYUDHAN NAIR,
KARTHIKAMANGALAM, AKG ROAD, EDAPPALLY P.O.,
KOCHI-682024.

BY ADVS.SMT.MAJIDA.S
SRI.AJIKHAN.M

RESPONDENT/RESPONDENT:

SUMI S.,
AGED 30, D/O. SASIDHARAN NAIR, VAISAKHOM, PERUNNA WEST P.O.,
CHANGANACHERRY,KOTTAYAM-686102.

THIS MATRIMONIAL APPEAL HAVING BEEN FINALLY HEARD ON 03-11-2016, THE COURT
ON THE SAME DAY DELIVERED THE FOLLOWING:

cms

K.SURENDRA MOHAN &

K.ABRAHAM MATHEW, JJ

Mat.Appeal.No.1062 of 2016

Dated this the 3rd day of November, 2016

JUDGMENT

K.Surendra Mohan, J The petitioner and the respondent are husband and wife. The petitioner had filed O.P.No.520 of 2014 before the Family Court, Kottayam at Ettumanoor seeking a decree of divorce under Section 13(I) (ib) and IA (ii) of the Hindu Marriage Act, 1955 read with Section 7 of the Family Courts Act. The Family Court tried the case. Both parties let in evidence. The respondent contested the averments made in the petition for divorce. However, on a consideration of evidence on record, the Family Court has dismissed the petition.

2. The evidence in the case consists of the oral evidence of PWs 1 and 2 and that of the respondent as RW1, Exts A1 to A4 documents, and Exts.B1 and B2 documents marked by the parties.

3. According to the Family Court, the allegation of desertion made by the petitioner has not been proved. Though a decree for restitution of conjugal rights has been passed, since the petitioner had not gone to the respondent to bring her and the child back, it has been found that, there was no desertion. The Family Court has omitted to consider the effect of Ext A2 decree for restitution of conjugal rights that has admittedly been passed in proceedings to which both the petitioner and respondent were parties. The counsel for the appellant contends that, the Family Court ought to have granted a decree of divorce at least under Section 13(1A)(ii) of the Act. Though the respondent has been served with notice of this appeal, she has not entered appearance.

4. Heard.

5. Section 13(1A)(ii) of the Hindu Marriage Act is extracted hereunder:

13(1A) Either party to a marriage, whether solemnised before or after the commencement of this Act, may also present a petition for the dissolution of the marriage by a decree of divorce on the ground-

xxx	xxx	xxx	xxx	
(ii) that	there	has	been	no

restitution of conjugal rights as between the parties to the marriage for a period of one year or upwards after the passing of a decree for restitution of conjugal rights in a proceeding to which they were parties.

6. A perusal of the above makes it clear that either party to a marriage whether solemnised before or after the commencement of the Act has a right to present a petition for the dissolution of a marriage on the ground that there has been no restitution of conjugal rights between the parties to the marriage for a period of one year after the passing of the decree for restitution of conjugal rights in a

proceedings to which both of them were parties. In the present case admittedly, Ext A2 decree for restitution of conjugal rights was passed by the Family Court, Kottayam at Ettumanoor in OP No.236 of 2009 on 30.9.2010. It is an admitted fact that, there has been no restitution of conjugal rights, thereafter. The judgment in appeal is dated 30.7.2016. Therefore, the statutory period of one year contemplated by the above provision has expired long back. According to the appellant, even now the parties are living separately.

7. The above being the position, this is a case in which, sub clause (ii) of clause (1A) of Section 13 of the Act squarely applies. The appellant is therefore, entitled to succeed.

In the result, this appeal is allowed. The judgment of the Family Court, Kottayam at Ettumanoor dated 30.7.2016 in OP No.520 of 2014 is set aside. OP No.520 of 2014 is allowed granting a decree of divorce to the appellant under Section 13(1A)(ii) of the Hindu Marriage Act, 1955.

Sd/-

K.SURENDRA MOHAN, JUDGE Sd/-

K.ABRAHAM MATHEW, JUDGE cms /True copy/ P.S.to Judge